CONSEIL DE L'EUROPE

COUNCIL OF EUROPE

COUR EUROPÉENNE DES DROITS DE L'HOMME
EUROPEAN COURT OF HUMAN RIGHTS

FIRST SECTION

DECISION

AS TO THE ADMISSIBILITY OF

Application no. 184/02
by Konstantin KUZNETSOV and Others
against Russia

The European Court of Human Rights (First Section), sitting on 9 September 2004 as a Chamber composed of:

Mr C.L. ROZAKIS, *President*,
Mr P. LORENZEN,
Mrs S. BOTOUCHAROVA,
Mr A. KOVLER,
Mr V. ZAGREBELSKY,
Mrs E. STEINER,
Mr K. HAJIYEV, *judges*,
and Mr S. NIELSEN, *Section Registrar*,

Having regard to the above application lodged on 17 December 2001,

Having regard to the observations submitted by the respondent Government and the observations in reply submitted by the applicants,

Having regard to the parties' oral submissions at the hearing on 9 September 2004,

Having deliberated, decides as follows:

THE FACTS

The applicants, Mr Konstantin Nikanorovich Kuznetsov and 102 others listed in the schedule, are Russian nationals and live in the town of Chelyabinsk. The first applicant is a representative of the Administrative Centre of Jehovah's Witnesses in Russia. All other applicants are members

of the Chelyabinsk community of Jehovah's Witnesses. They are represented before the Court by Messrs A. Leontyev and J. Burns, lawyers practising in St. Petersburg, and Mr R. Daniel, a barrister of the Bar of England and Wales. The respondent Government are represented by Mr P. Laptev, representative of the Russian Federation at the European Court of Human Rights.

A. The circumstances of the case

The facts of the case, as submitted by the parties, may be summarised as follows.

1. Background of the case

(a) Registration of the Chelyabinsk community

Between 1997 and 2001 the Chelyabinsk community of Jehovah's Witnesses filed twelve applications for State registration with the regional Department of Justice. They were refused on 17 May 1996, 20 June and 3 November 1997, 21 January, 30 April, 28 June, 15 July and 16 December 1999, 30 June and 17 August 2000, 11 May and 24 September 2001. Each refusal was justified by reference to ostensibly formal defects in the registration documents.

The applicants complained to a court. On 24 July 2002 the Tsentralniy District Court of Chelyabinsk ruled that the refusal of 24 September 2001 was unlawful. On 28 October 2002 the Chelyabinsk Regional Court upheld this decision and ordered registration of the Chelyabinsk community of Jehovah's Witnesses. On 31 March 2003 the community was officially registered by the Main Directorate of the Ministry of Justice of the Chelyabinsk Region.

(b) Criminal investigation into the activities of the local community

The applicants submit that Ms Gorina, a representative of the Chelyabinsk Region governor and the Chairwoman of the regional Human Rights Commission (hereinafter referred to as “the Commissioner”), attempted on several occasions to initiate a criminal case against the Chelyabinsk community of Jehovah's Witnesses on the allegation that the community had “lured” young children into their “sect”.

On 25 May 1999 a senior investigator with the Chelyabinsk town prosecutor's office found no indications of a criminal offence and refused to open a criminal investigation into the activities of the members of the Jehovah's Witnesses' community.

Following the Commissioner's intervention the decision of 25 May 1999 was reversed and an additional inquiry was ordered.

On 3 March 2000 the deputy Chelyabinsk town prosecutor again dismissed the allegations against the members of the Jehovah's Witnesses' community because no evidence pointing towards a criminal offence could be found.

(c) Negotiation of the lease agreement

On 6 February 1999 Mr Z., a member of the local community of Jehovah's Witnesses, acting on behalf of the Administrative Centre of the Religious Organisation of Jehovah's Witnesses, negotiated with Mr U., director of vocational training college no. 85 (*профессиональное училище № 85*) in Chelyabinsk, to rent the college auditorium and associated facilities. According to Article 1.1 of the lease agreement, the premises were rented for the purpose of holding religious meetings on Tuesdays between 7 and 9 p.m. and Sundays between 10 a.m. and 4 p.m., i.e. outside the normal college educational hours.

The lease agreement was intended to run from 7 February to 31 December 1999. It also contained a provision that it would be automatically renewed on the same terms and conditions and for the same period unless either side gave one month's advance notice of its intent to terminate the agreement. No such notice appears to have been given by either party. Thereafter the agreement continued to run for the extended one-year period, but with power to the lessees only to terminate it on two months' notice in writing. There was no reciprocal power for the college to terminate the agreement in the extended period.

The applicants submit that as of April 2000 they had been using the college facilities for fourteen months and paid their rent on time and in accordance with the terms and conditions.

The applicants indicate that, as a means of raising additional revenue for the college, its director entered into similar lease agreements with four other organisations.

(d) Attempts to terminate the lease agreement

On 31 March 2000 the Main Directorate for vocational training and science in the Chelyabinsk Region administration (*Главное управление профессионального образования и науки Администрации Челябинской области*) issued an order prohibiting all educational institutions in the Chelyabinsk Region to rent out their premises for religious services, meetings, etc. The applicants submit that the order was a policy decision and could only apply to future agreements. According to them, it gave no authority to terminate a lawful agreement already entered in force, which could only be terminated by a court decision.

The applicants indicate that on 12 April 2000 the Commissioner, together with an unidentified senior police officer, visited Mr U., director of college no. 85, and attempted to persuade him to terminate the lease agreement with

the applicants. The director refused the request. The Commissioner demanded to see the agreement and took a photocopy of it. She then asked a number of detailed questions about days and times on which Jehovah's Witnesses held their meetings. The director provided this information to her. The Commissioner allegedly threatened the director that if he did not terminate the lease agreement, he "would have problems".

2. Alleged disruption of a religious meeting on 16 April 2000

On Sunday, 16 April 2000, in accordance with the lease agreement, Jehovah's Witnesses used the college facilities. Two consecutive meetings were on the agenda. The first meeting ended without incident.

From 1.30 to 3.30 p.m. the second meeting was of a group with special needs, most of the participants in which were profoundly deaf. Many of those in attendance were elderly and also had impaired vision. A person trained in sign language provided interpretation at the meeting, the purpose of which was to study the Bible and join in public worship. The meeting was open to the general public: attendants were positioned near the entrance to the meeting place to greet newcomers and assist with seating.

The first part of the meeting was a talk given from the platform by the first applicant versed in sign language. There were 159 persons present.

At some time between approximately 2.10 and 2.15 p.m. the Commissioner entered the foyer which gives access from the street to the meeting place, holding a child by the hand. The applicant Setdarberdi Oregeldiev, profoundly deaf but without speech impairment, was the attendant on duty. He went out into the foyer to greet the Commissioner and the child and show them to a seat. Realising that the visitor was not deaf, another applicant Dmitri Gashkov, who did not have impaired speech or hearing, went to assist. He invited the Commissioner into the meeting hall and offered a chair; she refused and said that the police were about to arrive.

After this brief exchange the Commissioner left the foyer. The speaker went on with his talk, which ended at approximately 2.25 p.m.

The second part of the meeting was conducted in sign language by the applicant Karpushenko. This part was in progress, with about 15 minutes left and 45 minutes before the end of the contracted rental time of 4 p.m., when the Commissioner again entered the foyer, without the child. She was now accompanied by Mr Tomskiy, the director general of the Commissioner-affiliated public company "Man. Law. Power" (*ОАО* "*Областной консультационный центр 'Человек. Закон. Власть*'"), along with two senior police officers, Mr Vildanov, a deputy head of the District Inspectors' Department with the Traktorozavodskiy police department of Chelyabinsk (*УВД Тракторозаводского района г. Челябинска*), and Mr Lozovyagin, a senior district inspector of the same department. Mr Tomskiy was holding and using a camcorder to film.

The Commissioner led the way forward and walked to the threshold of the door into the meeting hall. Mr Tomskiy was a short distance behind, filming with the camcorder. The applicant Ms Lappo, who was not hearing impaired and sat close to the door and was in position to observe the events, later testified before the court as follows:

> "On 16 April 2000 a woman accompanied by two police officers and a man in plain clothes came to the meeting. They stood in the entrance so that I couldn't see the programme. The Commissioner said to one of the men 'Stop the meeting', but he hesitated and said 'But they are deaf mutes'.
>
> I told one of the congregation to go and get Konstantin [Kuznetsov]. When Konstantin came out to them there was a conversation with raised tones. The Commissioner asked if there were children in the hall and were they all with their parents. Then they asked Konstantin for his passport in such a way that it was unpleasant...
>
> ...When I found out who the Commissioner was I was very displeased. I demand that you fire her from her position in the Human Rights Commission..."

When asked by the judge what the Commissioner had said to the police officer, Ms Lappo responded:

> "She said: 'You – go up on to the stage and say that the congregation has to disperse'."

Mr Kuznetsov, the first applicant, approached the Commissioner and the police officers. As he was standing in the doorway with his back to the meeting hall, Inspector Lozovyagin requested him to produce his identity papers. He also asked Mr Kuznetsov whether he had residence registration in Chelyabinsk. Inspector Lozovyagin later testified as follows:

> "So I asked him [Kuznetsov] to show me his passport. It showed that he was registered in the Krasnodar Region. I said to him that he does not have the right to conduct arrangements without documents".

The first applicant submits that this statement was incorrect; it is true that his birth registration was in the Krasnodar Region, but he also had proper and lawful temporary residence registration in Chelyabinsk.

Inspector Lozovyagin continued:

> "I said to Kuznetsov that their organisation does not have the right to conduct its activities without the appropriate documents. He promised to bring the documents to the police station. I asked him to produce the documents. He said 'They exist and are elsewhere' but which documents and where he did not say. I asked him for a document confirming his relationship to the organisation..."

Responding to the judge's question about the violations of law and order that he had observed, Inspector Lozovyagin said:

> "Yes, to start with a meeting of an organisation whose activities could not be confirmed by any documents... By law I had to stop the activities until the documents were produced."

This was confirmed by Mr Vildanov who testified in court:

> "Lozovyagin said not to conduct the meeting any longer, and to prepare documents giving permission [for worship services in educational institutions]."

The first applicant submits that he was faced with authoritarian demands and the intimidating behaviour of the Commissioner and the police and he thought it best to comply. He described his predicament as follows:

> "I believe that we were conducting the meetings on legal grounds. Pressure was being put on me. Tomskiy gave me an official warning. I was afraid they would start removing those present at the meeting by force. Vildanov and Lozovyagin were in uniform. I understood that they were in a position of authority and must be obeyed..."

The first applicant went to the platform, interrupted the Bible discussion and made an announcement in sign language "Police. We have to submit". The attendees offered no resistance. They gathered their personal belongings and filed out of the meeting place and the foyer. The Commissioner and the police officers stood outside the building and watched; Mr Tomskiy was no longer filming.

According to the applicants, the Commissioner came up with several conflicting and mutually exclusive versions purporting to describe her role in the events. Initially she maintained that the visit had been purely for the purpose of fact-finding; that neither she, nor the police had done anything to cause the meeting to be stopped; that Kuznetsov stopped the meeting entirely of his own free will. As the case progressed and more eyewitnesses who testified as to the part played by her and the police were heard, the Commissioner eventually admitted that steps had indeed been taken to stop the meeting, but she blamed the police for that. She insisted that she had made no demands to the first applicant as the proceedings had been organised and carried out by the police officials. At the trial, though, she was pressed to say that she had agreed with and supported the police decision. Finally, in explaining her agreement with the police decision and pressed why, as the Chairwoman of the Human Rights Commission, she did so, she gave the following answer:

> "I still consider these actions to be lawful – I was defending the rights of all the children who study at college 85.
>
> [Question:] In which documents is information about the danger of Jehovah's Witnesses to the neighbourhood contained?
>
> [The Commissioner:] To me, it's sufficient what's said by the press."

3. Termination of the lease agreement

On 17 April 2000, the day after the disruption of the religious meeting, director of college no. 85 informed Mr Z. that the lease agreement between the college and the community of Jehovah's Witnesses would be terminated

as of 1 May 2000 “because of certain irregularities committed by the college administration at the time of its signing”.

4. Applicants' complaints and judicial proceedings

(a) Complaint to a prosecutor's office

On an unspecified date the applicants complained to the Chelyabinsk town prosecutor about the actions of the Commissioner and the police officers. They requested a criminal investigation into their actions. The prosecutor's office put questions to the Commissioner, Mr Lozovyagin and Mr Vildanov. In their written statements filed on 3 May 2000 they alleged that they had investigated a complaint of a 15-year-old girl who had been “lured” into the “sect” of Jehovah's Witnesses. They justified their actions by reference to the fact that Jehovah's Witnesses had had no State registration in the Chelyabinsk Region, which, in their opinion, deprived them of the right to hold worship services. On an unspecified date the prosecutor's office refused to institute criminal proceedings.

(b) Proceedings before courts

On 11 July 2000 the applicants filed a civil complaint with the Sovietskiy District Court of Chelyabinsk against the actions of the Commissioner.

On 13 November 2000 the applicants amended their complaint and joined Mr Tomskiy, Mr Lozovyagin, Mr Vildanov and Mr Kuryshkin, a deputy head of the Traktorozavodskiy police department, as co-defendants.

The applicants alleged violations of their rights to freedom of religion and freedom of association guaranteed both by the Russian Constitution and the Convention.

At the outset of the trial the applicants made a request that the terms “sect” and “cult” should not be used in the trial by any party. The presiding judge rejected the request “because the Commissioner said that the expression 'sect' [was] not offensive” (quotation from the transcript of the hearing). Subsequent requests by the applicants to introduce relevant judgments of the European Court of Human Rights, letter of the Russian Ombudsman (see below) and federal legal documents showing the lawful basis for Jehovah's Witnesses' operations in Russia, were also rejected by reference to the Commissioner's negative opinion.

The presiding judge did not consent to using audio-recording equipment provided by the applicants' attorneys. However, this injunction only applied to advocates and one of the applicants was able to record the trial on a personal audio recorder.

The applicants applied for an order to require Mr Tomskiy to produce the original video recording that he had made on 16 April 2000. The judge ordered Mr Tomskiy to produce the cassette. The applicants submit, once

the cassette was produced and placed on the bench before the judge, that the judge initially scheduled the playing of the cassette on the following day, but later reversed her decision and refused to admit it in evidence, without giving any legal reasons. According to the applicants, the cassette has never been played.

On 25 January 2001 the Sovietskiy District Court of Chelyabinsk gave its judgment. The court established that the Commissioner, Mr Tomskiy, Mr Lozovyagin and Mr Vildanov had come on 16 April to college no. 85 with a fact-finding mission to check whether a religious meeting had been taking place there. The court further established that the defendants had stayed in the foyer without entering the meeting hall, while the first applicant had gone to the platform and ordered, with signs, the closure of the meeting. The court held that the applicants failed to show that the religious meeting had been terminated on the defendants' orders. The court discarded the statements of Ms Lappo and other applicants as interested witnesses and relied on the testimonies of the defendants who vehemently denied giving an order to terminate the meeting. The applicants' complaint was dismissed in full.

On 28 June 2001 the Chelyabinsk Regional Court upheld, on the applicants' appeal, the judgment of 25 January 2001. The Regional Court adopted the same reasoning.

(c) Complaint to the Ombudsman

The applicants also complained about the actions of the regional Commissioner to Mr Mironov, the Ombudsman of the Russian Federation (*Уполномоченный по правам человека РФ*).

On 1 December 2000 the Ombudsman sent a letter to Mr Ustinov, the Prosecutor General of the Russian Federation. The Ombudsman strongly condemned the use of derogative words such as “sect”, “totalitarian sect” etc. in the documents issued by State officials. In the relevant part the letter read as follows:

> “...In particular, the letter from the deputy Prosecutor General, Ye.G.Chuganov, to the Chairwoman of the Governor's Commission for Human Rights in the Chelyabinsk Region, Ye.V.Gorina, was widely distributed... It contained recommendations to use as reference material on the activity of Jehovah's Witnesses the book *An Introduction to Sectarianism* by A. Dworkin, and the handbook *New Destructive and Occult-Related Religious Organisations in Russia*, prepared by the Missionary Department of the Moscow Partiarchate [of the Russian Orthodox Church]...
>
> The publication referred to in the letter is highly condemnatory in respect of certain confessions, it expresses the judgment of one religious organisation about others and its contents serve to prove the 'authenticity' of one religion and 'falseness' of the other(s)...
>
> The situation is further aggravated by the fact that Chuganov's letter was used in trials where it was treated to reflect the official stand taken by the Prosecutor General's

office of Russia. For example, in Chelyabinsk, in the course of examination of a claim by the local community of Jehovah's Witnesses against the Chairwoman of the regional Commission for Human Rights Ms Gorina, the latter constantly referred to Dworkin's book as a handbook recommended by the Prosecutor's office that contained reliable information on the activity of so-called destructive sects, including the community of Jehovah's Witnesses. This was used to justify the extremely heavy-handed behaviour of the town administration in respect of Jehovah's Witnesses, in particular, their breaking-up, with the aid of the police, of the believers' prayer meeting that was conducted in the premises which they had been renting for an extended period of time."

B. Relevant domestic law and practice

Statutory provisions

Constitution of the Russian Federation

Article 29 guarantees freedom of religion, including the right to profess either alone or in community with others any religion or to profess no religion at all, to freely choose, have and share religious and other beliefs and manifest them in practice.

Law "On the freedom of conscience and religious associations" of 26 September 1997

Section 4 § 2 provides that the State shall not interfere with the activities of religious associations provided that they comply with the laws. Section 4 § 4 further mandates that State and other public officials may not use their position to foster any specific attitude towards a religion.

Section 6 § 2 specifies that religious associations may have the form of either a religious group, or a religious organisation. A religious group carries out its activity without state registration and without obtaining legal entity status (Section 7 § 1). Pursuant to Section 22, the right to use rented property for religious purposes is only conferred on officially registered religious organisations; the religious groups may only use the premises provided by its participants.

Section 16 § 2 provides that worship services and other religious rites and ceremonies shall be performed without interference in buildings and structures for worship and their adjacent areas, and in other premises provided to religious organisations for these purposes.

Law "On appeals against actions and decisions infringing upon the rights and freedoms of citizens" of 27 April 1993

Section 2 provides that a court shall hear appeals against actions or decisions of state and public officials that infringe upon a citizen's rights or freedoms or prevent citizens from exercising their rights and freedoms. It is

incumbent on the concerned officials to show the lawfulness of their actions or decisions.

Law "On education" of 10 July 1992 (as amended on 16 November 1997)

Section 1 § 5 prohibits the establishment and functioning of structural units of political parties, political and religious movements and organisations in State and municipal educational institutions and education management bodies.

Case-law of the Supreme Court of the Russian Federation

On 30 July 1999 a deputy President of the Supreme Court of the Russian Federation ruled as follows on the complaint brought by the local administration of Kaluga against an elder of the local community of Jehovah's Witnesses who had allegedly failed to notify a religious meeting to the local authorities:

> "...according to the Russian Law 'On the Freedom of Conscience and Religious Associations' 'without obstructions' means that no permission or clearing of the matter with secular authorities is required for performing religious ceremonies in the premises provided [for that purpose]."

On 14 August 2001 a deputy President of the Supreme Court of the Russian Federation ruled as follows on a similar complaint brought by the administration of Kislovodsk against a Jehovah's Witness in connection with an allegedly unauthorised religious congregation:

> "According to Article 16 of the Russian Federation Law 'On the Freedom of Conscience and Religious Associations' religious services, other religious rites and ceremonies can take place without any interference... in other places provided for religious organisation for this purpose... Therefore, it was not required for the local religious organisation to inform the state authority of its congregation."

COMPLAINTS

1. The applicants complain under Articles 8, 9, 10 and 11 of the Convention, taken alone or in conjunction with Article 14 of the Convention, that the unlawful disruption of their meeting for religious worship constituted a violation of their rights under these Convention provisions and discrimination against them.

2. The applicants complain under Articles 6 and 13 of the Convention that they were denied a fair trial and an effective remedy because (i) the trial judge was manifestly biased against them and overtly favoured the defendants; (ii) they did not benefit from the equality of arms principle; and (iii) the court refused to admit their evidence and made findings that were wholly perverse and unsustainable on the facts.

3. The applicants complain under Article 13 of the Convention that the refusal of a prosecutor to initiate a criminal investigation deprived them of an effective remedy.

THE LAW

1. The applicants complained under Articles 8, 9, 10 and 11 of the Convention, read alone or in conjunction with Article 14 of the Convention, that on 16 April 2000 they were prevented from having a religious meeting without undue interference on the part of the authorities and that they were victims of discrimination on account of their religious beliefs. The pertinent parts of the above Convention provisions read as follows:

Article 8

"1. Everyone has the right to respect for his private and family life...

2. There shall be no interference by a public authority with the exercise of this right except such as is in accordance with the law and is necessary in a democratic society in the interests of national security, public safety or the economic well-being of the country, for the prevention of disorder or crime, for the protection of health or morals, or for the protection of the rights and freedoms of others."

Article 9

"1. Everyone has the right to freedom of thought, conscience and religion; this right includes freedom to change his religion or belief and freedom, either alone or in community with others and in public or private, to manifest his religion or belief, in worship, teaching, practice and observance.

2. Freedom to manifest one's religion or beliefs shall be subject only to such limitations as are prescribed by law and are necessary in a democratic society in the interests of public safety, for the protection of public order, health or morals, or for the protection of the rights and freedoms of others."

Article 10

"1. Everyone has the right to freedom of expression. This right shall include freedom to hold opinions and to receive and impart information and ideas without interference by public authority...

2. The exercise of these freedoms, since it carries with it duties and responsibilities, may be subject to such formalities, conditions, restrictions or penalties as are prescribed by law and are necessary in a democratic society, in the interests of national security, territorial integrity or public safety, for the prevention of disorder or crime, for the protection of health or morals, for the protection of the reputation or rights of others..."

Article 11

"1. Everyone has the right to freedom of peaceful assembly and to freedom of association with others...

2. No restrictions shall be placed on the exercise of these rights other than such as are prescribed by law and are necessary in a democratic society in the interests of national security or public safety, for the prevention of disorder or crime, for the protection of health or morals or for the protection of the rights and freedoms of others..."

Article 14

"The enjoyment of the rights and freedoms set forth in [the] Convention shall be secured without discrimination on any ground such as sex, race, colour, language, religion, political or other opinion, national or social origin, association with a national minority, property, birth or other status."

Arguments by the parties

1. Whether there was an interference

The Government submit, firstly, that the applicants failed to produce – in the domestic proceedings or before this Court – any evidence in support of their allegation that the meeting had been disrupted. According to their submissions, the first applicant, when asked to produce documents showing the lawfulness of the community meeting, realised that "the meeting should not be carried out"* and indicated the congregation that the meeting should end. Secondly, they assert that the founding documents of the Jehovah's Witnesses religious organisations do not provide for such forms of worship as mentioned by the applicants – a "worship meeting" or a "religious meeting". Thirdly, they allege that religious groups having no entity status could only use the property and premises provided by their members and therefore the lease agreement between the Administrative Centre of the Jehovah's Witnesses in Russia and college no. 85 had been void. Finally, in their opinion, the Russian Law on Education prohibited establishment and functioning of religious organisations in State or municipal educational institutions, both during school hours and after them, and the lease agreement was therefore void *ab initio* because it contravened this absolute prohibition and because it had been signed by the college director acting *ultra vires*.

The applicants disagree with the Government's arguments.

* The applicants translated this extract from the Government's observations as "[the first applicant]… agreed that it was unnecessary to hold the meeting…". Cf. the applicants' objections to this point below.

As regards the alleged failure to show that the meeting had been disrupted, the applicants point to overwhelming evidence presented to the domestic courts, including statements by independent witnesses, such as the college director. Furthermore, there is no requirement in law to prove the lawfulness of the meeting or to show that it was "necessary" or "should be carried out". Besides, the first applicant has never made an admission of the kind alleged by the Government. The Government's attempts to reverse the burden of proof notwithstanding, it was incumbent on the intervening authorities to show that the meeting had been unlawful, which they were unable and failed to do. As to the form of the meeting in question, the applicants consider that its actual form – be it a rite, ceremony, prayer, hymn or other liturgy – is of no relevance for the legal analysis of the alleged violation. In this respect it suffices to establish the religious character of the meeting.

Insofar as the Government allege that the lease agreement was void, the applicants expose the Government's arguments as factually incorrect and inconsistent. They indicate that the lease agreement had been signed not by a religious group having no legal personality, as the Government assert, but by the Administrative Centre of the Jehovah's Witnesses in Russia, i.e. the umbrella organisation for religious organisations and religious groups that had officially recognised legal entity status. The Government failed to specify by operation of what facts or law the legally binding lease agreement with no defect on the face of it, and the terms and mutual obligations of which had been fulfilled by both parties for more than fourteen months, could be rendered void without the intervention of a judicial authority. Indeed, on the date in question (16 April 2000) the validity of the agreement was not contested and the notice of termination was only served on the following day. Moreover, even assuming that there was a defect in the agreement, this would be a matter *inter partes* and it would not justify a disruption of a religious meeting held in its pursuance by a third-party civilian, such as the Commissioner in the present case.

Lastly, the applicants' challenge the Government's reliance on the Law on Education as a misinterpretation of the law. They point out that the community had been lawfully using an auditorium outside the college hours and without involving students or staff or the college, whilst the legal provision invoked by the Government only referred to the establishment of "structural units" of religious organisations.

2. Whether the interference was justified

The Government assert that the meeting was held with the participation of young hearing-impaired, disabled children without proof of consent of their parents or legal guardians. In their opinion, this fact was a sufficient justification for the alleged interference of the authorities and the

interference was accordingly prescribed by law and necessary for the protection of health and rights of others.

The applicants point out that the Government do not dispute that there was no police documents or authorisation for the raid, that the Commissioner and Mr Tomskiy were civilians and had no legal authority to take part in a police operation and that they travelled to the college by a private car and filmed the events with a private video camera. They further submit that the Government's assertion about the presence of children without parental consent is untenable on the facts of the case and unsupported by any evidence. The Commissioner and police officers never entered the auditorium and remained in the foyer, so they could not see who was inside. They only asked the first applicant for the documents and never attempted to establish the identity, parentage or any other information relating to the minors present, either while the meeting was in progress or after its termination. The applicants also point that the Government did not show that the alleged interference was based on relevant and sufficient reasons or met a pressing social need. Finally, they submit that, in any event, it was manifestly disproportionate as the meeting was disrupted just fifteen minutes before its end and after such meetings had been regularly held in the same premises for fourteen months in strict accordance with the law.

The Court's assessment

The Court considers, in the light of the parties' submissions, that the complaint raises serious issues of fact and law under the Convention, the determination of which requires an examination of the merits. The Court concludes therefore that this complaint is not manifestly ill-founded within the meaning of Article 35 § 3 of the Convention. No other ground for declaring it inadmissible has been established.

2. The applicants complain under Articles 6 and 13 of the Convention about a number of procedural defects that flawed the examination of their complaint and led the domestic courts to the findings untenable on the facts. Article 6, in the relevant part, provides as follows:

> "In the determination of his civil rights and obligations... everyone is entitled to a fair... hearing ... by [a]... tribunal established by law..."

Article 13 reads as follows:

> "Everyone whose rights and freedoms as set forth in [the] Convention are violated shall have an effective remedy before a national authority notwithstanding that the violation has been committed by persons acting in an official capacity."

Arguments by the parties

The Government submit that the judgments of the domestic courts do not disclose any violations of the procedural rights of the parties. Both parties submitted their observations to the courts and the courts made an impartial, comprehensive and thorough examination of the evidence before them. Against this background, the Government consider the applicants' allegations under this head to be manifestly ill-founded.

The applicants submit that the proceedings were fundamentally defective in that the judge rejected crucial evidence on which they sought to rely. They point out that the judgment was silent on the issue of credibility of key witnesses, especially the Commissioner who had given three mutually exclusive accounts of the events. Nor did the judgment state any reasons to dismiss statements by the plaintiffs.

The Court's assessment

The Court considers, in the light of the parties' submissions, that the complaint raises serious issues of fact and law under the Convention, the determination of which requires an examination of the merits. The Court concludes therefore that this complaint is not manifestly ill-founded within the meaning of Article 35 § 3 of the Convention. No other ground for declaring it inadmissible has been established.

3. Lastly, the applicants complain under Article 13 of the Convention about the refusal of a prosecutor public to prefer criminal charges against those responsible for the alleged disruption of their religious assembly.

The Court recalls that the right to bring criminal proceedings against a third person is not guaranteed, as such, by the Convention (see *Posokhov v. Russia* (dec.), no. 63486/00, 9 July 2002; *X. v. the Federal Republic of Germany*, no. 7116/75, Commission decision of 4 October 1976, Decisions and Reports 7, p. 91).

It follows that this complaint is incompatible *ratione materiae* with the provisions of the Convention within the meaning of Article 35 § 3 and must be rejected in accordance with Article 35 § 4.

For these reasons, the Court unanimously

Declares admissible, without prejudging the merits, the applicants' complaints about a disruption of their religious meeting and unfair hearing on their complaint;

Declares inadmissible the remainder of the application.

Søren NIELSEN
Registrar

Christos ROZAKIS
President

SCHEDULE

#	Name	Year of birth
1.	Abilmazhinov Yertustik Gazizovich	1957
2.	Abrosimova Valentina Nikolaevna	1931
3.	Akimochkina Anastasia Dmitrievna	1933
4.	Alekseyeva Galina Leonidovna	1952
5.	Aptasheva Olga Alekseyevna	1974
6.	Aptasheva Valentina Alekseyevna	1977
7.	Arkadyeva Valentina Mikhailovna	1936
8.	Avdieva Valentina Petrovna	1951
9.	Batayeva Olga Vasilievna	1958
10.	Berchatov Viktor Vasilievich	1947
11.	Berkutova Nadezhda Leonidovna	1962
12.	Brovina Lyubov Alekcandrovna	unknown
13.	Butina Nelli Fyodorovna	1970
14.	Chernyenko Tatiana Ivanovna	1948
15.	Cheskidova Lyudmila Ivanovna	1960
16.	Chmykhalo Galina Alekseyevna	1948
17.	Chugayeva Anna Stepanovna	1935
18.	Fattakhova Darya Ivanovna	1925
19.	Fokina Gaishura Gainullovna	1953
20.	Fomina Galina Anatolievna	1957
21.	Gaas Andrey Aleksandrovich	1959
22.	Galyanova Lyubov Stepanovna	1952
23.	Gashkov Dmitri Valerievich	1975
24.	Gavrilova Tatiana Mikhailovna	1969
25.	Gerashenko Tatiana Mikhailovna	1962
26.	Goryunova Tatiana Borisovna	unknown
27.	Grigoriev Aleksei Nikolayevich	1975
28.	Grigorieva Natalya Viktorovna	1977
29.	Guskova Tatiana Alekseyevna	1963
30.	Gusyeva Nina Mikhailovna	1947
31.	Israfilova Irina Leonidovna	1968
32.	Kadirova Elmira Faskhutdinovna	1978
33.	Kapashev Kurgalebek Berkutovich	1965
34.	Kapasheva Natalya Anatolyevna	1963
35.	Karpushenko Denis Sergeyevich	1977
36.	Khamidullina Mavlikha Farkhitovna	1959
37.	Khudaigulova Mindiyamal Mansurovna	1960
38.	Khusainova Hadezhda Mikhailovna	1958
39.	Kochkova Aleksandra Yegorovna	1932
40.	Kotov Yevgeniy Vladimirovich	1966

41.	Kotova Alyona Petrovna	1971
42.	Kovshov Valeriy Nikolayevich	1930
43.	Kozhakhmetova Saulye Nabievna	1970
44.	Kozhevnikova Lidia Miniyakhmetovna	1946
45.	Kozhin Sergei Aleksandrovich	1979
46.	Lappo Olga Viktorovna	1977
47.	Lebsak Nadezhda Vasilievna	1954
48.	Levchenko Oleg Petrovich	unknown
49.	Levchenko Olga Yurievna	1970
50.	Loshmanov Viktor Andreyevich	1940
51.	Lyubchenko Gennadiy Vladimirovich	1960
52.	Lyubchenko Marina Genadiyevna	1981
53.	Lyubchenko Olga Vasiliyevna	1960
54.	Makashova Madina Rayinbekovna	1976
55.	Malygina Iraida Nikolayevna	1956
56.	Mamayev Mikhail Gennadiyevich	1972
57.	Markina Vera Vasilievna	1956
58.	Matveyeva Lyudmila Vasilievna	1961
59.	Morets Fridrikh Ivanovich	1947
60.	Morets Tatiana Semionovna	unknown
61.	Nadyrshinna Inna Rustamovna	1981
62.	Nizametdinova Flyura Ivanovna	1946
63.	Nizhegorodtseva Galina Borisovna	1959
64.	Nurmiyeva Lyudmila Nuritdinovna	1959
65.	Ogneva Olga Yevgenievna	1963
66.	Oregeldiev Setdarberdi	1964
67.	Oregeldieva Galina Fridonovna	1962
68.	Ovchinnikova Nina Aleksandrovna	1951
69.	Parshukov Andrei Viktorov	1973
70.	Parshukova Irina Vladimirovna	1975
71.	Peshkova Yelena Valerievna	1972
72.	Petrova Lyubov Romanovna	1927
73.	Pechenkina Maria Fyodorovna	1935
74.	Pidzhakov Sergei Borisov	1956
75.	Pidzhakova Larisa Nikolayevna	1957
76.	Pleshkova Vera Karlovna	1966
77.	Prokhorova Irina Vladimirovna	1958
78.	Puzanov Vladimir Aleksandrovich	1969
79.	Puzanova Yelena Leonidovna	1976
80.	Safiyulin Ruslan Nasritdinovich	1977
81.	Samoilova Marina Nikolayevna	1963
82.	Samsonova Yekaterina Petrovna	1926

83.	Shalakov Vladimir Konstantinovich	1941
84.	Shalakova Valentina Pavlovna	1950
85.	Shilyayeva Tamara Ivanovna	1941
86.	Sinyukin Oleg Vladimirovich	1968
87.	Sinyukina Tatiana Vladimirovna	1973
88.	Sorokina Vera Alekseyevna	1960
89.	Stepina Zoya Sergeyevna	1940
90.	Sveshnikova Nina Nikolayevna	1947
91.	Taruta Tatiana Alekseyevna	1950
92.	Taskayev Ivan Mikhailovich	1940
93.	Taskayeva Anna Aleksandrovna	1933
94.	Tereschuk Larisa Igoryevna	1976
95.	Tereschuk Svetlana Yurievna	1964
96.	Tipyao Galina Pavlovna	1947
97.	Tipyao Gennadiy Ivanovich	1936
98.	Verednikova Anna Borisovna	1958
99.	Volosnikova Iraida Vladimirovna	1964
100.	Yegorova Yekaterina Grigorievna	1979
101.	Zinovieva Lyubov Porfiryevna	1927
102.	Zhuravlyova Larisa Yevgenievna	1969